

Mohd. Jameel v. State of U.P.

Allahabad High Court · Division Bench · 25 May 2018 · WRIT - C No. 18333 of 2018 · **Relegated to Clause 6.5; recovery citation stayed meantime**

HEADNOTE

A writ challenging a recovery citation of Rs. 35,226 for 2013 domestic electricity dues was treated as a billing dispute. The Division Bench directed the consumer to apply to the licensee under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within 10 days; the licensee was to decide within six weeks; the citation was not to be enforced till then.

FACTUAL SUMMARY

Mohd. Jameel, a domestic consumer, challenged a recovery citation issued by the electricity department for Rs. 35,226 towards alleged 2013 consumption dues. When the writ was first listed on 22 May 2018, notice had not been served on the licensee; counsel accepted notice the next day. On 25 May 2018 the Division Bench heard both sides and treated the petition as a billing dispute over a petty domestic recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — application to licensee

HOLDING

A writ challenging a recovery citation for electricity dues, being essentially a billing dispute, is to be pursued by an application to the licensee under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court disposed of the petition with a direction that such an application, if filed within 10 days with a certified copy of the order, be considered and decided within six weeks, and that the recovery citation not be enforced until then. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 2013 BILL AND VALIDITY OF THE RECOVERY CITATION OF RS. 35,226

The Court did not examine the merits of the billing dispute and remitted it to the licensee under Clause 6.5. ¶ 3